



Real Estate Regulatory Authority, Punjab
First Floor, Block-B, Plot No. 3, Sector-18 A, Madhya Marg, Chandigarh – 160018
Before the Bench of Sh. Rakesh Kumar Goyal, Chairman.
Phone No. 0172-5139800, email id: pschairrera@punjab.gov.in & pachairrera@punjab.gov.in

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| 1. Execution Application No. | | 38 of 2023 & M.A. No. 37 of 2024 in GC No. 1213/2019. |
| 2. Name & Address of the Applicant(s)/ Decree Holder(s)/ Complainant(s) | 1.
2. | Sh. Anil Vivan Singh S/o Sh. Albert Singh,
Sh. Anil Vivan Singh S/o Sh. Albert Singh in the capacity of legal representative for Ms. Anita Juliet Singh (Deceased) W/o Sh. Albert Singh,
Both at R/o A5 403, Nirmal Chhaya Towers, VIP Road, Zirakpur – 140603. |
| 3. Name & Address of the Judgment Debtor(s)/ Respondent (s) | 1.
2. | M/s ATS Estates Pvt. Ltd., through Managing Director/ Director, 711/92, Deepali, Nehru Place, New Delhi-110019.
Mr. Aditya Singh Pahwa, 711/92, Deepali, Nehru Place, New Delhi-110019. |
| 4. Date of filing of Execution Application | :- | 07.07.2023 |
| 5. Name of Counsel(s) for the Applicant, if any. | :- | Sh. Snehdip Oberoy & Sh. Mandeep Singh Khillan, Advocates |
| 6. Name of Counsel(s) for the respondents, if any. | :- | Sh. J. P. Rana & Sh. Hardeep Singh Advocates for respondents |
| 7. Section and Rules under which order is passed | :- | Section 40(1) of the RERD Act, 2016 r.w. Rule 24 and 25 of Punjab State RERD Rules, 2017 for execution of order dated 28.07.2022 passed in GC No. 1213/2019. |
| 8. Date of Order | :- | 03.08.2026 |

ORDER U/S. 40(1) OF REAL ESTATE (REGULATION & DEVELOPMENT) ACT, 2016 READ WITH RULES 24 AND 25 OF PUNJAB STATE REAL ESTATE (REGULATION & DEVELOPMENT) RULES, 2017.

The present applicants, being Non- Residents through their power of Attorney holder Sh. Gaurav Anand seek the execution of the order u/s 31 of Real Estate (Regulation & Development) Act, 2016 [(hereinafter referred as The Act, 2016 subsequently in this order)] dated 28.07.2022 passed in Complaint No. 1213 of 2019 by the Chairperson, Real Estate Regulation Authority, Punjab (Referred as The Authority subsequently in this order) titled as "Sh. Anil Vivan Singh S/o Sh. Albert Singh & Ms. Anita Juliet Singh W/o Sh. Albert Singh, Both R/o A5 403, Nirmal Chhaya Towers, VIP Road, Zirakpur-140603 (The Applicants/Decree Holders/ Complainants referred as Decree Holders subsequently in this order) Vs. M/s ATS Estates Pvt. Ltd. 711/92, Deepali, Nehru Place, New Delhi" (Judgment Debtors/ The



Respondents referred as Judgment Debtors subsequently in this order). The directions in the said order reads as under:-

8. As a result of the above discussion, the complaint is accepted and the respondent is directed to refund the amount of Rs.47,52,617/- with interest at the prescribed rate (today's highest MCLR Rate 7.30% plus 2%) from the date of deposit till the date of actual refund. The payment should be made within the time stipulated in Rule 17 of the Punjab State Real Estate (Regulation and Development) Rules, 2017.

2. The order dated 28.07.2022 in this case was passed subsequent to set aside of original order dated 18.04.2022 passed in Appeal No. 126 of 2021 by the Real Estate Appellate Tribunal, Punjab. Thus, this Authority by way of an order u/s. 31 of The Act, 2016 dated 28.07.2022 in the case of Sh. Anil Vivan Singh & Anr. v. M/s ATS Estates Pvt. Ltd. held that the respondent is liable to refund the amount of Rs.47,52,617/- deposited by the complainants alongwith interest at the prescribed rate from the date of deposit till the date of actual refund within time stipulated in Rule 17 of the Punjab State Real Estate (Regulation and Development) Rules, 2017. As the respondent did not comply with the said order, the complainants filed execution application on 07.07.2023. Therefore, on the date of filing execution application, the respondent was absolute defaulter in terms of compliance with the said order passed u/s 31 of The RERD Act, 2016 dated 28.07.2022 passed in GC No. 1213 of 2019 to the extent of refund of amount paid and payment of interest payable u/s 18(1) of The RERD Act, 2016.

3. In consequence of filing of execution application, a notice was issued to appear and submit reply, to the Judgment Debtors i.e. M/s ATS Estates Pvt. Ltd. & another.

4. Regular proceedings have taken place from time to time. A few of the interim orders are being reproduced herein after. The interim order dated 03.11.2023 reads as under:-



Learned Counsel for the complainants has already placed on file calculation sheet claiming Rs.88,92,729/- towards refund plus interest till 31.5.2023. Learned Counsel for the respondent stated that they are ready to clear the amount in nine equated monthly installments. Learned Counsel for the complainants stated that he has no objection to this arrangement.

Learned Counsel for the respondent has handed over two cheques of Rs.75,000/- dated 02.11.2023 bearing numbers 0428705 dated 11.10.2023 drawn on Kotak Mahindra Bank in favour of Anit Juliet Singh and Anil Vivan Singh respectively. Learned Counsel for the respondent has further agreed that interest due for these nine months shall be paid to the complainants in the last installment. Learned Counsel for the complainants agreed with the aforesaid contention of the learned Advocate of the respondent.

It is made clear that in case the entire amount is not paid within six months' time as promised by the learned Counsel for the respondent then action under penal provisions of the Act of 2016 will be initiated.

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5. The interim order dated 30.11.2023 reads as under:-

In compliance of last order dated 03.11.2023 the learned Counsel for the respondent has handed over two cheques of Rs.2,00,000/- dated 29.11.2023 bearing numbers 026496 and 026497 drawn on Kotak Mahindra Bank in favour of Anil Juliet Singh and Anil Vivan Singh respectively. The learned Counsel for the complainant has no objection to this payment.

The learned Counsel for the respondent reiterated that they will clear the amount in nine equated monthly installments to which the learned Counsel for the complainants did not have any objection.

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6. The interim order dated 05.01.2024 reads as under:-

Today, the learned Counsel for the respondent has handed over two cheques each of Rs.2,00,000/- dated 29.11.2023 bearing numbers 026496 & 026497 drawn on Kotak Mahindra Bank in favour of Anil Juliet Singh and Anil Vivan Singh respectively to the learned Counsel for the complainants.

Further, the learned Counsel for the respondent has also handed over two cheques each of Rs.2,75,027/- dated 04.01.2024 bearing numbers 000550 and 000551 drawn on HDFC bank to the learned Counsel for the complainants today in the court.

The learned Counsel for the complainants has no objection to this payment.

The learned Counsel for the respondent reiterated that they will clear the amount in nine equated monthly installments to which the learned Counsel for the complainants did not have any objection.



7. The interim order dated 30.09.2024 reads as under:-

Ld. Counsel for the applicant submitted that till date an amount of Rs.13,00,000/- had been paid to the applicant out of approx. Rs.89.00 lakhs as per mutual understanding of both the parties, to which Ld. Counsel for the respondent requested for an adjournment for seeking further instructions from the respondent-promoter. Respondent is directed to clarify as to why he has not paid the payments to the applicant as per schedule given and why the payments have been stopped after 07.05.2024 after payment of Rs.2.00 lakh.

8. The interim order dated 21.01.2025 reads as under:-

Sh. Hardeep Saini, Advocate for the respondent handed over a DD No.000809 dated 18.01.2025 for an amount of Rs.8,00,000/- to the Ld. Counsel for the applicant issued in favour of the complainant. Sh. hardeep Singh, Ld. Counsel for the respondent stated that till date an amount of Rs.21,00,000/- had been paid to the complainant, to which Ld. Proxy counsel for the complainant consented upon. Ld. Counsel for the respondent further sought time to submit his payment schedule plan to which Ld. Proxy Counsel for the complainant has no objection. Both the parties are directed to file their fresh calculation till 31.01.2025 duly certified by the CA as per order passed u/s 31 of the RERD Act, 2016.

9. The interim order dated 19.02.2025 reads as under:-

Since, the undersigned was on leave, matter could not be taken-up on 17.02.2025. As per record, despite intimation, as well as passing a detailed order on the last date of hearing, objections/ reply remains awaited. It is also pertinent to note here that a photocopy of Demand Draft No.026746 dated 17.02.2025 for an amount of Rs.6,00,000/- in favour of complainant is on record.....

10. The interim order dated 17.03.2025 reads as under:-

Reply is still awaited. However, Ld. Counsel for the respondent submitted that talks of settlement are going on inter-parties and the respondents had also paid some part payment, to which the complainant is hereby directed to submit the information in tabular form mentioned in 'Annexure-A' and 'Annexure-A1'. Respondents also directed to submit the information in the tabular form mentioned



in 'Annexure-A'. Both parties will exchange their forms as per stipulation mentioned in 'Annexure-A'. The respondent is hereby given an opportunity to submit its comments regarding the authenticity, correctness and accuracy of information contained 'Annexure-A1' once filed and shared by the complainant.

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11. The interim order dated 21.04.2025 reads as under:-

Ld. Counsel for the respondent handed over cheque of Rs.5,00,000/- in favour of the complainants and requested time to pay the balance amount by July, 2025 in four equated amounts, to which Ld. Counsel for the complainant have no objection. 'Annexure A & Annexure A-1' is still awaited from the complainant, to which Ld. Counsel for the complainant requested time for doing the same.....

12. The interim order dated 28.05.2025 reads as under:-

Sh. Hardeep Saini, Advocate for the respondent handed over a DD No.024462 dated 26.05.2025 for an amount of Rs.5,00,000/- to the Ld. Counsel for the applicant issued in favour of complainant. Further, Ld. Counsels for both the applicant and respondent jointly requested to the execution in abeyance since respondent is making certain payments on monthly basis. As per request of both the parties, request is accepted.

Annexure-A & Annexure A-1 is yet to be filed. The Learned Counsel for the applicant sought time and assured this Bench that Annexure-A & Annexure A-1, based on the complainant's bank statement, will be submitted on the next date of hearing, to which he is directed to send a copy of the same to the respondent in advance.....

13. The interim order dated 07.07.2025 reads as under:-

When the matter was taken-up, both the parties jointly requested for adjournment as the respondent is making part payment. Bench was ready to pass the execution order but both parties requested to keep it pending for the sake of recovery. Both are directed to file their latest calculation upto 31.07.2025 on the next date of hearing.

It is also pertinent to note here that Ld. Counsel for the respondent handed over a DD of Rs.5.00 lakh to the Ld. Counsel for the applicant in favour of the complainant.

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14. The interim order dated 05.08.2025 reads as under:-

Ld. Counsel for the respondent handed over a DD of Rs.5,00,000/- to the Ld. Counsel for the applicant in favour of the complainant. Bench was ready to pass the execution order but both parties requested to



keep it pending for the sake of recovery. Both are directed to file their latest calculation upto 31.07.2025 on the next date of hearing.

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15. The interim order dated 09.09.2025 reads as under:-

Ld. Counsel for the respondent handed over a Demand Draft of Rs.5,00,000/- to the Ld. Counsel for the applicant in favour of the applicants, during the course of hearing. The Bench was inclined to proceed with passing of the execution order, however, upon joint request of both parties, the matter is kept pending for the sake of recovery. Both parties are directed to file their respective latest calculations of the outstanding amount, duly updated up to 30.09.2025 on the next date of hearing.

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16. The interim order dated 10.03.2026 reads as under:-

*When the matter was taken-up, Ld. Counsel for the respondent sought an adjournment to file its calculation sheet. However, it is noted that the complainant has not filed the calculation sheet as on 31.03.2026, though a copy thereof has been placed on record by the respondent. The complainant is granted a **last opportunity** to file the calculation as on 31.03.2026, clearly reflecting all payments received upto 31.03.2026. In the event the same is not filed by the next date of hearing, the figures submitted by the respondent shall be treated as final and the matter shall be decided on the basis of the said figures, treating them as true and correct.*

*Next date of hearing is **28.04.2026** for further proceedings and examining other facts of the case.*

*Annexure 'A' has not been filed by any of the parties, inspite of requests as per Record of Proceedings dated 19.02.2025, 17.03.2025, 21.04.2025, 26.05.2025, 07.07.2025, 05.08.2025, 09.09.2025, 28.10.2025, 11.11.2025, 16.12.2025, 02.02.2026 & 10.03.2026. **Last opportunity is granted to file Annexure 'A'**, to the complainant. In case the party does not file Annexure 'A', the information contained in Annexure 'A' filed by the other party will be presumed true and correct for purpose of calculation, if any to be made.....*

It is apparent from the above that this Authority was ready to pass the order but the matter was kept pending on the request of both the parties.

17. As per the Annexure 'A' dated 27.03.2026 filed by complainants/ applicants vide Dairy No. 2092 dated 27.03.2026, the principal amount is ₹.47,52,617/-, the interest upto 27.03.2026 is



₹.55,53,600/- and they have received an amount of ₹.65,00,027/- so far. According to them an amount of ₹.38,06,190/- is still to be recovered.

18. The scanned copy of calculation of payments made towards payments received against the flat, refund of deposits against flat, amount and interest on the refund on account of deposits against the flat and refund of such interest, filed by the judgment debtors/ respondents/ promoters is as under:-

Project : ATS Golf Meadows Lifestyle
Name of the Client : Anil Vivan Singh
Flat No : 7004

ALS-ANIL VIVAN SINGH C-231
As per client calculation in Court Order

QC 123/2019 of NERA Punjab

Amnt Paid	Amnt Refunded	Balance	Start Date	End Date	No of Days	Rate %	Interest Amnt
1,00,000	-	1,00,000	31-Dec-12	17-Jan-13	17	10.00%	668
14,06,940	-	15,06,940	17-Jan-13	31-Dec-13	348	10.00%	1,51,901
1,00,000	-	16,06,940	31-Dec-13	31-Jan-14	31	10.00%	5,687
2,30,000	-	18,36,940	11-Jan-14	26-Mar-14	74	10.00%	43,716
6,08,654	-	24,45,594	26-Mar-14	10-Jun-14	75	10.00%	17,377
94,841	-	25,40,435	10-Jun-14	31-Jul-14	21	10.00%	39,878
2,94,840	-	28,35,275	31-Jul-14	23-Aug-14	22	10.00%	19,189
2,94,840	-	31,30,115	23-Aug-14	31-Oct-14	68	10.00%	61,251
2,94,840	-	34,24,955	31-Oct-14	20-Jan-15	81	10.00%	76,228
2,94,840	-	37,19,795	20-Jan-15	16-Feb-15	27	10.00%	26,851
2,94,840	-	40,14,635	16-Feb-15	20-Sep-15	247	10.00%	9,92,809
2,95,675	-	43,10,260	20-Sep-15	4-Oct-17	54	10.00%	15,420
2,09,790	-	45,09,470	4-Oct-17	20-Oct-17	16	10.00%	14,543
2,09,790	-	47,19,260	20-Oct-17	1-Nov-17	12	10.00%	14,397
2,09,790	-	49,29,050	1-Nov-17	3-Nov-23	2192	10.00%	27,92,320
-	1,50,000	47,79,050	3-Nov-23	19-Nov-23	17	10.00%	13,285
-	2,00,000	45,79,050	19-Nov-23	5-Jan-24	37	10.00%	65,585
-	2,78,227	43,00,823	5-Jan-24	8-Feb-24	34	10.00%	37,489
-	4,75,227	38,25,596	8-Feb-24	16-May-24	98	10.00%	95,303
-	2,00,000	36,25,596	16-May-24	14-Jun-25	243	10.00%	2,22,999
-	8,00,000	28,25,596	14-Jun-25	17-Feb-25	34	10.00%	27,749
-	8,00,000	20,25,596	17-Feb-25	21-Apr-25	63	10.00%	33,650
-	5,00,000	15,25,596	21-Apr-25	26-May-25	35	10.00%	13,900
-	5,00,000	10,25,596	26-May-25	7-Jul-25	42	10.00%	10,927
-	5,00,000	5,25,596	7-Jul-25	4-Aug-25	28	10.00%	3,449
-	5,00,000	2,25,596	4-Aug-25	4-Aug-25	0	10.00%	-
47,79,050	47,79,050	-	-	-	-	-	48,92,858

Amnt Paid	Amnt Refunded	Balance	Start Date	End Date	No of Days	Rate %	Amount
47,79,050	-	47,79,050	04-Aug-25	06-Sep-25	35	10.00%	43,853
-	5,00,000	42,79,050	06-Sep-25	11-Nov-25	64	10.00%	79,081
-	2,00,000	40,79,050	11-Nov-25	16-Dec-25	35	10.00%	39,162
-	3,00,000	37,79,050	16-Dec-25	31-Jan-26	46	10.00%	47,663
-	5,00,000	32,79,050	31-Jan-26	09-Mar-26	37	10.00%	33,269
-	1,00,000	31,79,050	09-Mar-26	27-Apr-26	49	10.00%	40,032
-	2,50,000	29,29,050	27-Apr-26	13-Jul-26	77	10.00%	57,634
47,79,050	36,49,050	11,30,000	-	-	-	-	3,94,679

DESCRIPTION	AMOUNT
AMT RECD FROM CLIENT	46,99,630
INTEREST ON REFUND	48,12,430
ON A/C OF JUDICIAL AGENT	1,75,000
INT. ON DELAY PAYMENT OF REFUND	3,18,677
AMOUNT RECOVERABLE TO CLIENT	99,95,737
AMT ALREADY PAID TO CLIENT	67,50,054
Net BALANCE AMOUNT RECOVERABLE TO CLIENT	32,45,683

Calculation is Accepted
By
Counsel for DH/Complainant
Adv. SURENDIP OBEROI
I accept that the balance amt is 26,95,683/- after receiving SL today.
(SL paid today)
vide cheque no. 024224)
Through Counsel
Handeep
13/7/2026

19. The perusal of the above calculation sheet filed by the respondents reveals that the counsel for the complainant has accepted this figures & calculations therein. Therefore, the figures of deposits & refunds given in this calculation sheet are adopted for the purpose of calculation in this execution order.

20. I have duly considered the order passed u/s 31 dated 28.07.2022, the application filed by the applicants/ decree holders, the reply dated 20.09.2023/ miscellaneous application No. 37 of 2024 filed vide diary No. 4916 dated 03.07.2024 by the respondents/ judgment debtors and the arguments of the parties. The counsel for the respondents has contended that the respondents/ judgment debtors are under moratorium as the director of the holding company is under insolvency. This plea is not acceptable. The Real Estate Regulatory Authority and Real Estate Regulation Act were institutionalized as a homebuyer protection authority and statute/ mandating



registration, disclosure and timely completion of projects to protect individuals who had invested their life savings in the dream of home ownership. If a director has provided a personal guarantee for a company loan, the lender can go after the director's personal assets to recover the debt. A company is a separate entity from its directors and shareholders. A director's personal insolvency means they are an "undischarged insolvent" and may be disqualified from managing a company, but this does not directly or indirectly affect the insolvency of any company including its subsidiary company. Under the Companies Act, the company and its shareholders/ directors have distinct identity. The company has its own legal entity and common seal. The doctrine of limited liability treats each company as a separate legal person, distinct from its shareholders. Similarly, subsidiary company incorporated under the Companies Act enjoys its own legal personality. The owning of shares in a subsidiary company does not make the parent company, the owner of the subsidiary company's assets not to talk of the directors of parent company. In other words, a holding company is not automatically entitled to the assets of its subsidiary company, even if it owns hundred percent of shares of subsidiary company. The Hon'ble Supreme Court in a judgment dated 23.07.2024 in Civil Appeal No. 4565 of 2021 in the case titled as BRS Ventures Investments Ltd. vs. SREI Infrastructure Ltd. & Anr. has held as under:-

A holding company and its subsidiary are always distinct legal entities. The holding company would own shares of the subsidiary company. That does not make the holding company the owner of the subsidiary's assets. In the case of Vodafone International Holdings BV, this Court took the view that if a subsidiary company is wound up, its assets do not belong to the holding company but to the liquidator. As mentioned in the decision, the reason is that a company is a separate legal persona and the fact that the parent company owns all its share has nothing to do with its separate legal existence. Therefore, the assets of the subsidiary company of the corporate debtor cannot be part of the resolution plan of the corporate debtor.

20.1 The Hon'ble National Company Law Appellate Tribunal ("NCLAT") in the case of Flat Buyers Association Vs. Umang Realtech Pvt. Ltd. in Company Appeal (AT) (Insolvency) No. 926 of 2019 reported at (2020) SCC OnLine NCLAT 1199 has held as follows:-

"21..... Company Appeal (AT) (Insolvency) No. 926 of 2019 So, we hold that Corporate Insolvency Resolution Process against a real estate company (Corporate Debtor) is limited to a project as per approved plan by the Competent Authority and not other projects which are separate at other places for which separate plans approved. For



example - in this case the Winter Hill - 77 Gurgaon Project of the 'Corporate Debtor' has been place of Corporate Insolvency Resolution Process. If the same real estate company (Corporate Debtor herein) has any other project in another town such as Delhi or Kerala or Mumbai, they cannot be clubbed together nor the asset of the Corporate Debtor (Company) for such other projects can be maximised".

20.2 Therefore, in this matter of Flat Buyers Association Vs. Umang Realtech Private Limited through IRP and Others, it has been held that if the allottees, financial institutions / banks or operational creditors of a project initiate the CIRP proceedings of a real estate company then it should be confined to the said project and should not include other projects of the real estate company. It was observed in the said judgment that different projects of a real estate company would be situated at different places, where separate plans are approved by different authorities, landowners may be distinct from the real estate company in question and the allottees, financial institutions / banks and operational creditors of each project would also be different for each project. As there is no insolvency resolution plan against the project under consideration now, the plea of respondents/ judgment debtors is rejected. The execution proceedings cannot be stayed and is being proceeded with.

21. In my considered view, the execution proceedings are limited to the implementation of the directions contained in the main order passed u/s 31 on 28.07.2022. Addition of new or additional facts without any supporting documents at this belated stage lies beyond the scope of these proceedings and cannot be adjudicated in the present execution proceedings. Therefore, based on the written and oral submissions of the applicants/ decree holders & respondents/ judgment debtors and the material available on record, it is held that the respondents i.e. M/s ATS Estates Pvt. Ltd. and another had failed to comply with orders passed u/s 31 of the Real Estate (Regulation and Development) Act, 2016 dated 28.07.2022 in this case.

22. As per the above said order, the Judgement debtors/ promoters were liable to refund the amount of ₹.47,52,617/- deposited by the decree holders/ applicants with interest at the prescribed rate (today's SBI highest MCLR rate plus 2%) from the date of deposit till the date of actual refund. The perusal of the said order reveals that original order under section 31 of RERD Act, 2016 in this case was passed on 13.10.2021. The said order was remanded back for fresh decision by the Real Estate Appellate Tribunal,



Punjab. In the said order dated 28.07.2022, it was held that the complainants will be entitled to interest at the prescribed rate (today's SBI highest MCLR rate plus 2%). On the said date i.e. 28.07.2022, SBI's highest MCLR rate was 7.80%. Therefore, the complainants are entitled to receive refund with an interest rate of 9.80% from the date of deposit till the date of actual refund.

22.1 The interest should be calculated from the next month to the date on which payment/ deposit was made with promoter to the month previous to the date when the refund is made. The amount refunded by the promoter shall first, adjust against the interest payable and if the balance is left, such amount of refund shall be adjusted against principal amount to be refunded. The amount of interest becoming payable/ due from due date of date of deposit to the date of refund is as under:-

Interest payable from	Interest Calculated till	Principal Amount	Refund Amount	Interest Rate	Tenure (Months)	Interest Amount
01.01.2013	30.09.2025	1,00,000		09.80	153	1,37,700
01.02.2013	30.09.2025	14,86,940		09.80	152	18,45,788
01.01.2014	30.09.2025	3,00,000		09.80	141	3,45,450
01.02.2014	30.09.2025	2,20,000		09.80	140	2,51,533
01.04.2014	30.09.2025	6,48,654		09.80	138	7,31,033
01.07.2014	30.09.2025	94,841		09.80	135	1,04,562
01.08.2014	30.09.2025	1,94,840		09.80	134	2,13,220
01.09.2014	30.09.2025	1,94,840		09.80	133	2,11,629
01.11.2014	30.09.2025	1,94,840		09.80	131	2,08,446
01.02.2015	30.09.2025	1,94,840		09.80	128	2,03,673
01.03.2015	30.09.2025	1,94,840		09.80	127	2,02,082
01.10.2017	30.09.2025	1,95,615		09.80	96	1,53,362
01.11.2017	30.09.2025	4,19,580		09.80	95	3,25,524
01.12.2017	30.09.2025	2,09,790		09.80	94	1,61,049
TOTAL		46,49,620				50,95,051
Less Amount adjusted against Principal Amount		1,05,003	52,00,054	Less amount refunded till 30.09.2025		50,95,051
Balance Principal Payable		45,44,617	Balance Interest Payable		NIL	
01.10.2025	31.10.2025	45,44,617		9.80%	1	37,114
			Balance Interest Payable as on 01.11.2025		37,114	
		1,62,886	2,00,000	Less amount refunded on 11.11.2025		37,114
Balance Principal Payable		43,81,731	Balance Interest Payable		NIL	
01.11.2025	30.11.2025	43,81,731		9.80%	1	35,784
			Balance Interest Payable as on 01.12.2025		35,784	
		2,64,216	3,00,000	Less amount refunded on 16.12.2025		35,784
Balance Principal Payable		41,17,515	Balance Interest Payable as on 01.12.2025		NIL	
01.12.2025	31.01.2026	41,17,515		9.80%	2	67,253
		4,32,747	5,00,000	Less amount refunded on 31.01.2026		67,253
Balance Principal Payable		36,84,768	Balance Interest Payable as on 01.02.2026		NIL	
01.02.2026	28.02.2025	36,84,768		9.80%	1	30,092
		2,69,908	3,00,000	Less amount refunded on 09.03.2026		30,092
Balance Principal Payable		34,14,860	Balance Interest Payable as on 01.03.2026		NIL	
01.03.2026	31.03.2026	34,14,860		9.80%	1	27,888
		2,22,112	2,50,000	Less amount refunded		27,888



				on 27.04.2026	
Balance Principal Payable		31,92,748	Balance Interest Payable as on 01.04.2026		NIL
01.04.2026	30.06.2026	31,92,748	9.80%	3	78,222
		4,21,778	5,00,000	Less amount refunded on 13.07.2026	78,222
Balance Principal Payable		27,70,970	Balance Interest Payable as on 01.07.2026		NIL
01.07.2026	31.07.2026	27,70,970	9.80%	1	
Balance Principal Payable		27,70,970	Balance Interest Payable as on 31.07.2026		22,630
Total Amount Refunded By Promoter		72,50,054			
Balance Principal Payable		27,70,970	Balance Interest Payable as on 31.07.2026		22,630
Total Principal Amount + Interest Payable as on 31.07.2026 is ₹. 27,93,600/- (₹.27,70,970+ 22,630)					

22.2 The respondents/ promoters claims to have paid total of ₹.72,50,054/- consisting of ₹.46,49,620/- as principal amount and ₹.26,00,434/- as interest accrued amount while as per the calculation above, the interest accrued amounts to ₹.53,94,034/- as on 31.07.2026. Therefore, it is observed that the respondents/ promoters are liable to pay an amount of ₹.27,93,600/- consisting of ₹.27,70,970/- as principal amount and ₹.22,630/- as interest upto 31.07.2026 to the applicants/ complainants. The above calculation of interest and adjustment of refund towards principal and interest is summarized as under:-

Particulars	Principal	Interest Upto 30.06.2026	Principal + Interest Upto 31.07.2026
	46,49,620	53,94,034	1,00,43,654
Refunds till 13.07.2026	18,78,650	53,71,404	72,50,054
Balance Payable as on 31.07.2026	27,70,970	22,630	27,93,600

22.3 The principal adopted for adjustment of refund against principal & interest is to be first adjusted against the interest payable on the said date of payment and thereafter, the balance amount shall be adjusted against the principal. For example, the judgment debtors/ respondents have made payments of ₹.52,00,054/- from 2nd November, 2023 to 8th September, 2025 to the applicants/ complainants. On the said date, the interest payable was ₹.50,95,051/-. Therefore, an amount of ₹.50,95,051/- till the said date have been adjusted against interest payable and the



balance amount of ₹.1,05,003/- has been adjusted against the principal amount payable. However, the respondents/ judgment debtors have adjusted all refund payments first against the principal amount and thereafter started adjusting the payments against interest payable which is not correct method. Further, the respondents/ judgment debtors have taken 10% as rate of interest whereas on the said date of judgment, the rate of interest comes to be 09.80%. Therefore, there is difference between the calculation furnished by the respondents/ judgment debtors and the calculation made in this order.

23. Therefore, an amount of ₹.27,93,600/- consisting of Rs.27,70,970/- as principal amount plus accrued interest of ₹.22,630/- (Balance Interest Amount Payable) upto 31.07.2026 has become payable or due to the judgment debtor/ respondent. The payment made shall be first adjusted against the interest payable on the said date and the balance, if any shall be adjusted against the principal amount. The respondent shall remain liable to pay further monthly delay interest at the rate of ₹22,630/- per month from 01.08.2026 onwards, which shall continue to accrue until the date, a full and complete payment is made by the judgment debtor/ respondent or until such time as full compliance with the order is achieved. The amount of ₹.27,93,600/- [27,70,970 + 22,630] is due and payable and the same is being held as land revenue for the purposes of collection to be collected under the provisions of the Punjab Land Revenue Act, 1887. The respondent is further directed to pay the above said sums at the earliest and further a sum of ₹22,630/- per month from 01.08.2026 onwards till full and complete amount is refunded to the decree holder/ complainant.

24. The total amount due up-to the end of month of date of judgment in this case i.e. 31.07.2026 amounts to ₹.27,93,600/- [27,70,970 + 22,630] and the respondent/judgment debtor is directed to make the payments immediately. No further time is granted since the order u/s. 31 of the RERD Act, 2016 was passed on 28.07.2022 and the



respondent/judgment debtor were legally bound to make the said payment within 90 days of the order.

25. Any amount paid by the respondent/judgment debtor shall be first deducted towards the interest payable by the respondent/judgment debtor and if amount paid is in excess of the interest payable then the balance amount (amount paid – interest payable) will be deducted from the amount of principal amount.

26. Further, the respondents/judgment debtors will liable for interest of ₹22,630/- per month for the delayed period after 31.07.2026. The respondent/judgment debtor M/s ATS Estates Pvt. Ltd. is therefore held liable for an amount of ₹.27,93,600/- [27,70,970 + 22,630]. The respondents/judgment debtors are further directed to pay the above amount at the earliest. In the result, the execution application is allowed. The amount of principal plus interest ₹.27,93,600/- [27,70,970 + 22,630] and further a sum of ₹22,630/- per month from 01.08.2026 as provided u/s. 40 (1) of the Real Estate (Regulation and Development) Act, 2016 will be calculated as "Land Revenue" by the Competent Authority under the provisions of "Land Revenue Act, 1887". The Secretary of this Authority will issue a recovery certificate accordingly.

27. Further, any amount paid by the respondent/judgment debtor shall be considered as payment against the interest whatever is due and will be set off against principal only after payment of whole of interest. The payment by respondent/judgment debtor will be considered only after whole of interest due till date has been paid. Even subsequent payment, if any will be first considered towards interest payment, if any becomes due on the unpaid principle amount. It is clarified that interest @ ₹22,630/- per month will keep on generating till the whole payment is paid as per detailed above.

28. However, at the cost of repetition it is ordered in addition to the above direction and discussion in various paras, the following directions are ordered specifically for necessary compliance:-



- a. The Authority has allowed the execution application.
- b. It has been directed that the respondent-cum-judgment debtor-cum-promoter is liable to pay an amount of ₹.27,93,600/- [27,70,970 + 22,630] and further a sum of

₹22,630/- per month from 01.08.2026, after adjusting the payment of interest of ₹.53,94,034/- & adjusting the payment of ₹.18,56,020/-.

- c. The Authority has further directed that additional delay interest at the rate of ₹22,630/- per month shall be payable from 01.08.2026 onwards till a full and complete principal and interest amount is paid.
- d. It has been further directed that the accrued interest amount shall be adjusted first against any payment received on the said date, and in case the payment amount exceeds such accrued interest on the said date, the balance shall be adjusted against the principal amount payable by the respondent-cum-judgment debtor-cum-promoter to the applicant-cum-complainant-cum-allottee.
- e. The Authority has held that the determined amount of ₹.27,93,600/- [27,70,970 + 22,630] along with future monthly interest of ₹22,630/- per month from 01.08.2026 shall be treated as arrears of land revenue under Section 40(1) of the RERD Act, 2016 and shall be recoverable through the competent revenue authorities in accordance with the Punjab Land Revenue Act, 1887.
- f. The respondent-cum-judgment debtor-cum-promoter is directed to comply with the order proactively by making payment and both parties have been directed to inform the Authority regarding any payments or adjustments made so that the same may be duly accounted for before initiation of recovery proceedings.

29. **Sh. Anil Vivan Singh S/o Sh. Sh. albert Singh and Sh. Anil Vivan Singh as legal representative of Late Ms. Anita Juliet Singh are hereby held as decree holder and M/s ATS Estates Pvt. Ltd. and Another are hereby held as judgment debtor.** The principal plus total balance interest amount payable up-to the previous month to date of possession i.e. 31.07.2026 amounts to **₹.27,93,600/- [27,70,970 + 22,630]** and **₹.22,630/-** per month for the delayed period after 31.07.2026. The respondent/JD is directed to make the payments immediately. No further time is granted since the order u/s. 31 of the RERD Act, 2016 was passed on 28.07.2022 & the respondent/JD



was legally bound to make the said payment within ninety days of the said order.

30. The principal plus total balance interest amount payable up to the previous month to date of possession i.e. 31.07.2026 amounting to **₹.27,93,600/- [27,70,970 + 22,630]** and **₹.22,630/-** per month for the delayed period after 31.07.2026 as provided u/s. 40 (1) of the Real Estate (Regulation and Development) Act, 2016 is hereby held as "Land Revenue" by the Competent Authority under the provisions of "Land Revenue Act, 1887". The Secretary of this Authority will issue a recovery certificate accordingly. It is held that **₹.27,93,600/- [27,70,970 + 22,630]** and **₹.22,630/-** per month for the delayed period after 31.07.2026 is payable as per "Agreement for Sale" entered between the applicant-cum-complainant-cum allottee & the respondent-cum-promoter and/was payable simultaneously as and when any demand was raised by the respondent-cum-promoter-cum-judgment Debtor. The Judgment Debtor/ Respondent/ Promoter is under liabilities to make the payment now immediately. The determination of this amount as "Land Revenue" is an alternative means of coercive collection due to failure of the judgment debtor/ promoter/respondent to make the payment when it was due.

31. The Secretary of the Real Estate Regulatory Authority, Punjab is hereby directed to issue the recovery certificate immediately. The promoters (judgment debtors) and the complainant (decree holder) are directed to inform the Secretary of this Authority for any payment effected in compliance with the recovery certificate or call it back after it is fully satisfied and update the data of this Authority with the said transaction of payment.

The present execution application is allowed.

Chandigarh
Dated: 03.08.2026




(Rakesh Kumar Goyal)
Chairman,
RERA, Punjab.

F. No. Endst. No./CP/RERA/PB/PA/Sec.40/1087

Date: 11.08.2026

A copy of the above order is being sent to the followings for information as well as for their further necessary action:-

1. Sh. Anil Vivan Singh S/o Sh. Albert Singh & Sh. Anil Vivan Singh S/o Sh. Albert Singh in the capacity of legal representative for Ms. Anita Juliet Singh (Deceased) W/o Sh. Albert Singh, at R/o A5 403, Nirmal Chhaya Towers, VIP Road, Zirakpur – 140603.
2. M/s ATS Estates Pvt. Ltd., through Director, 711/92, Deepali, Nehru Place, New Delhi-110019.
3. The Secretary, RERA, Punjab.
4. The Director (Legal).
5. The Complaint File.
6. The Master File.




(Sawan Kumar)
P.A. to Chairman,
RERA, Punjab